

8th Legislative Body
43rd Regular Session
Series of 1987

Republika ng Pilipinas
LUNGSD NG DABAW
Tanggapan ng Sangguniang Panlungsod
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EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE
SANGGUNANG PANLUNGSOD, CITY OF DAVAO, HELD ON FRIDAY,
NOVEMBER 13, 1987.

PRESENT:

CIC Rodrigo R. Duterte, Office of the Vice
Mayor
Councilor Antonio S. Castillo, Acting
Presiding Officer
Councilor Ruben V. Abarquez
Councilor Nicenor A. Magno
Councilor Danilo C. Dayanghirang
Councilor Corazon N. Malanyaon
Councilor Tomas Monteverde, Jr.
Councilor Benjamin G. Bafiso
Councilor Luis N. Lacerna
Councilor Teodulfo L. Vega
Councilor Antonio H. Vergara
Councilor Luzviminda C. Ilagan
Councilor Dante P. Escalante
Councilor Rene V. Galope
Councilor Jacinto T. Rubillar, Jr.
Councilor Nilo G. Abellera
Councilor Nemesio L. Rasgo, Jr.

ABSENT:

N o n e

* * *

RESOLUTION NO. 598

A proposed ordinance on anti-pornography as favorably recommended by the Committee on Laws and Ordinances, was presented for consideration and appropriate action of the Body by Councilor Teodulfo L. Vega, Chairman, Committee on Laws and Ordinances.

Councilor Teodulfo L. Vega reminded the Members of the Body that the previous ordinance to this has been vetoed by His Honor, the City Mayor on the ground of exorbitant imposition of fines whereby it violates the pertinent provisions of the Local Government Code.

He further informed the Members of the Body that after a series of public hearings conducted to this effect,

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the Committee has finally drafted the said ordinance in view of numerous public clamor for the enactment of this ordinance in view of the proliferation of pornographic films shown in local downtown theaters.

His Honor, the Vice Mayor presented an amendment to the effect that under Section 11 of said ordinance a provision shall be inserted making mandatory for the City Mayor to cause the immediate closure of theaters pending the prosecution of the case of the guilty parties. The Vice Mayor manifested that without inserting this provision and as per experience the proliferation of the showing of pornographic films will continue pending the resolution of the case. He further stated that as a lawyer, the prolongation of the case can be made depending upon the whims and caprices of the counsel concerned, while the showing of lewd films continues.

Upon the other hand, the other Members of the Body manifested that the insertion of this amendment would make the local Executive as the prosecutor and Judge at the same time. When the said amendment was put into a vote, the motion was lost.

Councilor Dante P. Escalante amended further that in order to add more teeth on said ordinance, he proposed that Section 13 be eliminated and placed under sub-paragraph C of Section 12 which will read as follows:

- C) For the commission of Third Offense, a fine of P1,000.00 or imprisonment not exceeding 6 months, or both of such fine and imprisonment, at the discretion of the Court.

In case of commission of the third offense in addition to fine and imprisonment, the guilty person shall suffer permanent cancellation of business permit, in addition to the fine and imprisonment stated in the immediate preceding section. The amendment was accepted by the proponent.

After careful deliberation, on motion of Councilor Teodulfo L. Vega, duly seconded by Councilor Luis M. Lacerna, as amended by Councilor Dante P. Escalante, it was

RESOLVED, AS IT IS HEREBY RESOLVED, To approve an ordinance entitled:

ORDINANCE NO. 50

"AN ORDINANCE PROHIBITING THE SHOWING OF PORNOGRAPHIC FILMS AND SUCH OTHER FILMS DISAPPROVED FOR PUBLIC EXHIBITION AND REGULATING ADMISSION TO MOVIEHOUSES".

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Be it Ordained by the Sangguniang Panlungsod, City of Davao, that:

SECTION 1. - This Ordinance shall be known as the "Anti-Pornography" ordinance of the City of Davao.

SECTION 2. - The provisions of this Ordinance shall be applicable within the entire territory and jurisdiction of the City of Davao and shall be enforceable by the Office of the City Mayor.

SECTION 3. - Except as otherwise provided, for the purpose of this Ordinance, whenever any of the following words or terms are used herein, or in any amendments hereto, they shall have the same meaning ascribed to them in this section;

- (a) Board - The Movie and Television Review and Classification Board created under Presidential Decree No. 1986;
- (b) Persons - Means any individual, industry, corporation, partnership, association, firm or owner, lessee or manager of the theater or establishment, his agent or assignee;
- (c) Motion Picture - A series of pictures projected on a screen in rapid succession, with objects shown in successive positions slightly changed so as to produce the optical effect of a continuous picture in which the objects move whether the picture be black and white or colored, silent or with accompanying sound, on whatever medium and with whatever mechanism or equipment they are projected, and in whatever material they are preserved or recorded for instant projection. The material in which the motion picture is contained, preserved or recorded forms part of the motion picture. The term film is here used synonymously with motion pictures.

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- (d) Television Broadcast - Public showing by transmitting sound or images by television or similar equipment, including cable television and other limited audience distribution;
- (e) Theatrical Distribution - Public showing or exhibition of motion pictures in theaters, moviehouses, or any other places imposing admission fees to persons for entertainment, education, information and advertisement.
- (f) General Viewing - Refers to motion pictures made available to the general public for its viewing whether through film packs or public lending clubs or similar organizations;
- (g) General Patronage or G - A classification of motion pictures admission to which is open to persons of all ages;
- (h) Parental Guidance or P - A classification of motion pictures cautioning parents on the delicate content of the film and the need for parental guidance in its appreciation;
- (i) Restricted or R - A classification of motion pictures admission to which is limited to adults. Adults, are persons eighteen (18) years of age or over;
- (j) Not For Public Viewing or X - A classification of motion pictures disapproved by the Board for public exhibition or television broadcast;
- (k) Television Program - Any matter aired or broadcast on television including live and pre-taped programs, product and service advertisements, teleplays, and motion pictures originally shown in moviehouses or elsewhere;
- (l) Publicity Material - Any material employed to generate public interest in a

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motion picture, including film trailers, advertisement copies, still photos, leaflets, posters and billboards;

(m) Review - The process of examining motion pictures, television programs and related publicity materials and determining whether, using the standards set by law, they are fit for importation, exportation, production, copying, distribution, sale, lease, exhibition, or broadcast by television. The process include the determination as to what audience classification the film may be exhibited.

(n) Pornography - As here used is synonymous with obscenity the test of which is whether to the average person, applying contemporary community standards, the dominant theme of the material taken as a whole appeals to prurient interest. This includes patently offensive or demeaning representations or descriptions of ultimate sexual acts, normal or perverted, actual or simulated, including but not limited to zoocerastia, and anal or oral sexual intercourse; patently offensive representations, excretory functions and lewd exhibition of the genitals; and explicit sexual exploitation of children.

SECTION 4. - No motion picture, television program or related publicity material shall be available for theatrical distribution or exhibit or broadcast by television, without prior permit issued by the Board after review of the motion picture, television program or publicity material.

SECTION 5. - The person or entity to whom a permit has been issued by the Board shall use such permit only for the purpose or purposes stated in it. He shall preserve the integrity of the motion pictures, television program, or related publicity materials in the conditions they were approved, guarding against insertions in or additions to them of unapproved matters.

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SECTION 6. - Moviehouses and television studio owners and their managers, as well as the operators of limited-audience cinema shall:

- (a) Exhibit only motion pictures, television programs, related publicity materials covered by appropriate Board permit. In case of television broadcast whose kind of audience cannot be controlled, only television programs and publicity materials classified by the Board as suitable for general patronage or with parental guidance may be broadcast.
- (b) Any exhibition of films approved by the Board shall be preceded by a short announcement on the screen showing the Board's classification of the film and the fact that it has been approved by the Board for public viewing.
- (c) Theater owner and their managers shall prominently display a copy of the permit to exhibit in front of the ticket office. The permit thus posted should have the following requisites:
 - i. It should be authentic and bear the seal of the Board.
 - ii. It should match the film currently shown in the moviehouse.
 - iii. It should point out the cut portions of the film as reviewed by the Board.
 - iv. It should contain the film's classification, whether for general patronage or G, parental guidance or P, restricted or R, etc.
- (d) Maintain a three-feet high standee on the theater lobby announcing the Board's classification of the film. In case two films are presented as double features, the more restrictive classification shall govern the announcement and the admission into the theater.

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- (e) In case of moviehouse and other places of exhibition open to the public, the owners and their managers shall, in case the film being exhibited is for adults only, screen and refuse admission to persons below eighteen years of age, or in case the film is with parental guidance classification those twelve years of age and below and, order the exclusion of such persons if, by some device, they have gained illegal entrance into the premises. In case of doubt, the film exhibitor or his agent shall demand his residence certificate or other proof of age.
- (f) Holders of approved print and sign advertisements bearing the stamp of the Board shall, when using such advertisements, cause to be stated on them the Board's classification of the film.

SECTION 7. - Theatrical distribution by any person of pornographic films and such other films or motion pictures disapproved by the Board for public exhibition or television broadcast, including the use of publicity materials therefore, is strictly prohibited.

SECTION 8. - It shall be unlawful for any person to tamper with any motion picture, television program, or publicity material previously approved by the Board in order to introduce, intercalate or insert any unapproved matter.

SECTION 9. - It shall be unlawful for any person below eighteen years of age to enter, to misrepresent or make use of any false evidence about his or her age in order to gain admission into, a moviehouse or theater showing a motion picture classified as "Restricted" or "For Adults Only" by the Board. It shall be also unlawful for any employee of a moviehouse or theater to sell to, or receive from, another person known to the former

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to be below eighteen years of age any admission ticket to the exhibition of motion pictures classified "Restricted" or "For Adults Only". In case of doubt as to be the age of the person seeking admission, the latter shall be required to exhibit his or her residence certificate or other proof of age.

SECTION 10. - The Office of the City Mayor shall constitute and organize such special committee whose head and members he may designate from the City Fiscal's Office, representative from the Sangguniang Panlungsod and representative from the private sector. Such special committee shall assist in the overseeing and implementation of this Ordinance.

SECTION 11. - For the effective enforcement of the provisions of this Ordinance, the Office of the City Mayor or its duly authorized representative shall have the power to inspect all public exhibitions or any motion picture or publicity material in moviehouses, theaters and other public establishments, and in any case, upon discovery of any motion picture or publicity material which, although previously approved by the Board has been tampered with to introduce any unapproved matter, to immediately seized the article containing or incorporating such unapproved matter and to cause the prosecution of the person(s) responsible for the violation of this Ordinance. Upon conviction of the violator(s), the material seized as well as the other proceeds or instruments of the crime shall be disposed of in accordance with law.

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SECTION 12. - Violation of any of the provisions of
this Ordinance shall be punished by:

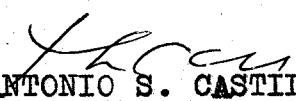
- (a) For the commission of first offense, a
fine of Five Hundred Pesos.
- (b) For the commission of the second offense,
a fine of One Thousand Pesos.
- (c) In case of commission of third offense
in addition to fine and imprisonment,
the guilty persons shall suffer perma-
nent cancellation of the business per-
mit, in addition to the fine and
imprisonment stated in the immediate
preceding section.

SECTION 13. - This Ordinance shall take effect upon
its approval.

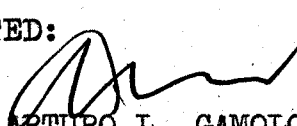
ENACTED: November 13, 1987.

CARRIED by a majority of 13 affirmative votes. Coun-
cilors Tomas Monteverde, Jr. and Rene V. Galope were out when
the votes were taken.

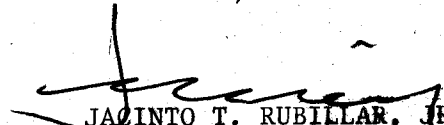
APPROVED:


ANTONIO S. CASTILLO
City Councilor
Acting Presiding Officer

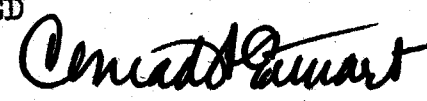
ATTESTED:


ARTURO L. GAMOLO
Secretary
Sangguniang Panlungsod
aba/aad

APPROVED: 12/11, 1987


JACINTO T. RUBILLAR, JR.
Officer-in-Charge
Office of the City Mayor

ATTESTED


CONRADO A. ESTUART
City Secretary